



THE NATIONAL LEGAL INTERNET PORTAL OF THE REPUBLIC OF BELARUS

Legal Acts

On Freedom of Conscience and Religious Organisations

Law of the Republic of Belarus

No. 2054-XII of December 17, 1992

[The Law is in the edition of the Law of the Republic of Belarus No. 137-Z of October 31, 2002; amended as of January 4, 2010]

The present Law regulates legal relationships in the sphere of the human and civil rights to freedom of conscience and religion, and also determines the legal basis of creating the religious organizations and their activity based on:

Right of every person to freedom of conscience and religion and also to equal protection of the Law regardless of the attitude towards religion;

Equality of religions in front of the Law;

Recognition of a determining role of the Orthodox church in historical formation and development of spiritual, cultural and state traditions of Belarusian people;

Inseparability from the general history of people of the Republic of Belarus of Evangelic Lutheran church, Judaism and an Islam;

Necessity to assist the achievement of mutual understanding, tolerance and respect of religious feelings of citizens in questions of freedom of conscience and religion.

Chapter 1. General Provisions

Article 1. Objectives of the Present Law.

Objectives of the present Law are: providing and guaranteeing of the right of every person to freedom of conscience and religion, to social justice, equality, protection of rights and interests regardless of the attitude towards religion and regardless of religious membership, to freedom of association to religious organizations.

Article 2. Legislation of the Republic of Belarus.

The legislation of the Republic of Belarus on freedom of conscience and religion is based on the Constitution of the Republic of Belarus and consist of the Present Law and other legal normative acts of the Republic of Belarus.

Article 3. The Basic Terms and the Concepts Used in the Present Law.

In the Present Law the following terms and concepts are used:

Religion- an outlook and attitude, and also behavior complying to them and the specific actions (cult) based on belief in supernatural;

Creed- a developed dogma of any religion with traditional cult practice;

Divine service- the set of cult ceremonies and the actions made by clergymen under the developed ritual and arising from the requirement of religious dogma;

Religious practices - the set of the actions established by religious dogma in which religious ideas are embodied;

Religious rituals and ceremonies- the order of performing religious actions established by the religious dogma;

The religious cult- a main kind of the religious activity consisting in certain behavior and specific actions expressing the religious worship of supernatural;

Religious property- things and other material objects (buildings, church plate etc.) needed for conducting the religious practices, rituals, ceremonies;

Clergyman - a person authorized by the appropriate religious association to confession, vicarial, preaching service;

Pilgrimage- visiting by believers of historically significant places to worship relics of the given religion;

Religious activity- the activity directed on satisfaction of religious needs of believers, expansion of religions, religious education, conducting divine services, prayerful assemblies, training of clergymen, and also other activity directed on organizational and material maintenance of the cult practice of the religious organization (publishing and distribution of the religious literature, manufacturing and distribution of subjects of cult, manufacture vestments for clergymen and other activities);

Citizens- citizens of the Republic of Belarus, and also foreign citizens and persons without the citizenship, constantly residing in the Republic of Belarus, if otherwise is not established by the present law.;

Article 4. Right to the Freedom of Conscience.

Every person has the right to freedom of choice of atheistic or religious beliefs, namely: to determine independently the attitude towards religion, on his own or together with others to profess any religion or not to profess any.

Article 5. Right to Freedom of Creed.

Every person has the right to freely choose, have, change, express, and spread religious beliefs and to operate according to them, to participate in practicing the religious cults, rituals, ceremonies not forbidden by the law.

Nobody is obliged to inform about his attitude towards religion and cannot be exposed to any compulsion at determining of the attitude towards religion or confession of this or that religion, to participation or nonparticipation in activity of religious organizations.

Parents or the person substituting them at the mutual consent shall have the right to bring up their children according to the own attitude towards religion. The state can not interfere with education of the child based on certain religious outlook of parents or persons backup them except for cases when prompting to religious actions threatens directly the life or health of the child, or violates his legitimate rights.

Article 6. Equality of Religions.

Religions and creeds are equal in front of the Law.

Ideology of religious organizations can't be settled as obligatory for citizens.

Article 7. Equal Rights of Citizens.

Citizens are equal in front of the law regardless of their attitude towards religion.

In official documents attitude of the citizen towards religion is not indicated, except for the cases when the citizen wishes so.

Obstructing the realization of rights to freedom of conscience and religion, and also the establishment of any advantages or restrictions of rights of citizens depending on their attitude to religion are not be allowed and shall be prosecuted by the law.

Nobody shall evade on motives of the religious beliefs from execution of the duties established by the law.

Article 8. The State and Religion.

Mutual relations of the state and religious organizations are regulated by the law with the consideration of their influence on forming the spiritual, cultural and state traditions of Belarusian people.

The state does not impose the performance of any state functions on the religious organizations, does not interfere with activity of the religious organizations, if it does not contradict the legislation of the Republic of Belarus.

The religious organizations have the right to participate in public life and also to use the state mass media in the order established by the legislation of the Republic of Belarus.

The religious organizations do not participate in activity of political parties and other public associations pursuing political aims and do not render them financial and other support.

In places of divine services use of the state symbols, holding of assemblies, meetings, prelection campaign and other actions of political character, and also speeches and appeals offending representative of the bodies of government, officials and individuals are not allowed.

The state promotes the establishment of relations of tolerance and respect between the citizens professing and not professing religion, the religious organizations of various creeds. The state can build the mutual relations with religious associations by concluding with them agreements according to the civil legislation of the Republic of Belarus.

Article 9. Education and Religion.

The national education system in the Republic of Belarus has secular character and does not pursue the purpose of formation of this or that attitude to religion.

Citizens have the right to equal opportunities to access the national education system regardless of their attitude to religion.

In educational establishments the creation of religious organizations and its anonymous or other activity contradicting to the legislation are not allowed.

Educational establishments in questions of educational activity on the basis of written applications of parents or persons substituting them in non learning time can interact with the registered religious organizations with view of their influence on formation of spiritual, cultural and state traditions of Belarusian people. The order, conditions, the contents and forms of such interaction are determined by the Councils of Ministers of the Republic of Belarus as agreed with the President of the Republic of Belarus.

The religious organizations registered in the order established by the present law have the right to create in accordance with their charter educational groups and Sunday schools for religious education of children using for this purpose the premises belonging them or granted to for usage except for the premises belonging to official educational establishments.

Article 10. Body of State Management on Religious Affairs.

The republican body of state management on religious affairs is formed by the President of the Republic of Belarus.

The republican state body on affairs of religions realizes the control of execution of the legislation of the Republic of Belarus about a freedom of worship, creeds and the religious organizations, considers and solves the questions arising in sphere of mutual relation of the state and the religious organizations.

Article 11. Powers of Body of State Management on Religious Affairs.

The republican body of state management on religious affairs state has the following authorities:

Prepares suggestion on settlement of the questions connected with activity of religious organizations and requiring the decision of the President of the Republic of Belarus or the Council of Ministers of the Republic of Belarus;

Provides the Council of Ministers of Republic with informational and analytical materials on the question of mutual relation of the state and the religious organizations;

Checks and controls the activity of the religious organizations in the sphere of the execution of the legislation of the Republic of Belarus on freedom of conscience, creed and religious organizations, and also their charters, gives obligatory instructions about elimination of the revealed infringements;

Takes part in consideration by republican state bodies of the questions connected to observance of the legislation of the Republic of Belarus on a freedom of conscience, creed and the religious organizations;

Carries out contacts and coordinating connections with the state bodies of other states which carry out similar functions;

&Receives from the republican state bodies, local executive and administrative bodies the information on observance of the legislation of the Republic of Belarus on freedom of conscience, creed and the religious organizations.

Conducts the State register of the religious organizations;

At the request of the religious organizations assists them reaching the agreements with the state bodies and promotes strengthening of mutual understanding and tolerance between the religious organizations of various creeds;

Gives the local Councils of deputies, executive and administrative bodies the methodical recommendations and consultations on the questions of execution and application of the legislation of the Republic of Belarus on freedom of conscience, creed and the religious organizations;

Appoints the state religious expertise in cases established by the present Law;

Creates an expert council for realization of the state religious expertise with the participation of the appropriate experts and engagement when needed the representatives of the religious organizations;

Appeals to the court with the application on liquidation of the religious organization (for the religious organizations registered by the republican body of state management on affairs of religions);

Carries out the state registration of religious associations, monasteries and monastic communities, religious

brotherhoods and sisterhoods, religious missions, religious educational establishments;

At inquiries of republican state bodies, local executive and administrative bodies, other legal persons draws the conclusions on kinds and forms of religious activity.

Article 12. State Register of Religious Organizations.

The republican body of state management on affairs of religions conducts the State register of the religious organizations.

Oblasts, Minsk city executive bodies conduct registers of the religious organizations registered in the appropriate territory. The information included in the registers of the religious organizations in ten-day term is transferred by the Oblasts, Minsk City executive committees in the republican body of state management on affairs of religions.

The list of the information subject to inclusion in the State register of the religious organizations is determined by the republican body of state management on affairs of religions.

Chapter 2. Religious Organisations in the Republic of Belarus

Article 13. Religious Organizations in the Republic of Belarus.

The religious organizations in the Republic of Belarus are voluntary associations of citizens of the Republic of Belarus (religious communities) or of religious communities (religious associations), associated on the basis of community of their interests for satisfaction of religious needs, and also monasteries and monastic communities, religious brotherhoods and sisterhoods, religious missions, religious educational establishments.

The religious organizations have the following attributes:

Creed;

The developed cult practice;

Conducting of divine services;

Religious enlightenment and education of their followers.

Only the citizen of the Republic of Belarus can be head of religious organization.

Article 14. Religious Communities.

Religious community is recognized as an association of group of citizens of the Republic of Belarus being adherents of uniform creed and satisfaction of other religious needs within the limits of the territory of one or several settlements.

Religious communities are formed under the initiative of not less than twenty citizens of the Republic of Belarus reached eighteen-year age and constantly residing in one or in several settlements having adjacent territorial limits, and operate only in their territory.

Communities operate on a voluntary basis according to the charters and subject to the state registration in the order established by the present law.

Article 15. Religious Associations.

Religious association is recognized as an association of religious communities of the same creed for joint satisfaction of religious needs of their participants (members).

Religious associations are formed at presence of not less than ten religious communities of uniform creed from which at least one carries out the activity in territory of the Republic of Belarus not less than twenty years. Religious associations operate through their bodies of management.

Republican religious association is religious association formed from religious communities functioning in the majority of oblasts of the Republic of Belarus.

Activity of the republican religious association extends to the territory of activity of religious communities included into it.

Republican religious association has the right to create local religious associations from the religious communities working in one or several oblasts. The activity of local religious associations extends to the territory of activity of religious communities included into them.

Republican and local religious associations operate on the basis of the charters and are subject to the state registration in the order established by the present law.

Religious associations have the right to create monasteries and monastic communities, religious brotherhoods and sisterhoods, religious missions, religious educational establishments which operate on the basis of their charters and are subject to the state registration in the order established by the present law.

Article 16. State Registration of Religious Organizations.

The religious organizations are subject to obligatory state registration. From the moment of the state registration the religious organization gets the status of the legal person.

The religious organizations as legal persons enjoy rights and carry out duties according to the legislation of the Republic of Belarus and their charters.

The state registration of the religious organizations is carried out by:

Religious communities- Oblasts, Minsk city executive committees;

Religious associations, and also monasteries and monastic communities, religious brotherhoods and sisterhoods, religious missions, religious educational establishments created by the decision of management bodies of religious associations,- Republican body of state management on affairs of religions.

After decision making about registration of the religious organization recording body grants the certificate the established sample on the state registration of the religious organization.

Changes and the amendments introduced in charters of the religious organizations are subject to the state registration in the order established for registration of the religious organizations, and inure from the date of their state registration.

In case of change of the information contained in the State register of the religious organizations the religious organization in a month term from the date of entering of such a change notifies on it registering body about it.

Article 17. State Registration of Religious Communities.

For registration of a religious community founders submit to the Minsk city, Oblasts executive committees, local administration in the place of prospective activity of the community the application for its registration signed by all participants (members) of this community.

The following are enclosed to the application:

list of citizens who have formed a religious community, with the indication of a surname, proper name, patronymic, date of birth, citizenship, place of residence, and also with a personal signature;
three examples of the charter of a religious community;
protocol of assembly of participants (members);
the document confirming the right to situate the religious community on the place of location specified in the charter.

The religious community professing religious dogma earlier unknown in the Republic of Belarus enclose to the application also the information on bases of this religious dogma and the cult practice appropriate to it including the information about the history of appearing of the religion professed by the given community, about forms and methods of its activity, about the attitude to a marriage and family, education, execution of the state duties, to reception of medical aid by the followers of the given religion. Requirements for the composition, content and the procedure of submission of such information are determined by the Council of Ministers of the Republic of Belarus.

Minsk City, Oblasts executive committees, local administration in a month term consider the submitted materials on registration of religious communities and direct them with the conclusion to appropriate Oblasts, Minsk city executive committees.

In the case of non-submission of the documents provided by parts two and three of present article the City, district executive committees, local administration within a ten days term from the date of putting in the application make a decision on refusal of accepting the application with the notification applicants on it.

Regional, city executive committees having received the materials submitted on registration in a month term consider them and make a decision on registration or about refusal in registration of a religious community and inform about it the applicants.

Materials on registration of the religious community professing religious dogma, earlier unknown in the Republic of Belarus, regional, Minsk city executive committees direct to republican state body on affairs of religions for conducting of the state religious examination. In this case term of consideration of documents shall be prolonged for six months.

Article 18. State Registration of Religious Associations.

For registration of religious association its founders submit the application on the registration to republican body of state management on affairs of religions which makes a decision in one month term.

The following is enclosed to the application:

three examples of the charters;
extract from the report of congress (conference, general meeting, session of body of management) about forming the religious association;
the list of members of management body of religious association with the indication of a surname, proper name, patronymic, date of birth, citizenship, place of residence;
the document confirming the right of accommodation of religious association at the place, specified in the charter.

In the case of non-submission of the documents provided by part two of the present article the republican body of state management on affairs of religions within a ten days term from the date of putting in the application takes a decision on refusal of accepting the application with notification the applicants on it.

Article 19. The State Registration of Monasteries and Monastic communities, Religious Brotherhoods and Sisterhoods, Religious Missions, Religious Educational Establishments.

Monasteries and monastic communities, religious brotherhoods and sisterhoods, religious missions, the religious educational establishments created under the decision of management bodies of religious association are subject to state registration in the order established for registration of religious associations, with the consideration of the features stipulated by parts two and three of the present article.

To the application on registration of monasteries and monastic communities, religious brotherhoods and sisterhoods, religious missions the list of participants (not less than ten person) with the indication of a surname, proper name, patronymic, date of birth, citizenship, a place of residence and the personal signature are additionally enclosed.

To the application on registration of religious educational establishments the certificate of religious association on presence of necessary educational premises, and also on provision with the teaching personnel having the appropriate education and knowing state languages are additionally enclosed.

Article 20. Charter of Religious Organization.

The religious organization carries out the activity on the basis of the charter.

Charters of religious community and religious association are approved by their founders.

The charter of the religious organization created by religious association is affirmed by the management body of religious association.

The following shall be specified in the charter of religious organization:

The full name including the indication on confessional belonging of the given religious organization;
The place of location;
The purposes, tasks and the basic forms of activity;
Belonging to religious association (for the religious communities which are included into the religious association, and the religious organizations formed by the religious associations);
Territory of activity;
Structure of the organization, bodies of its management, the order of formation, the competence, composition and terms of office;
Sources and the order of formation of money assets and other property of the organization;
Body, competent to take the decisions on purchase of property and the other property of religious organizations;
The order of liquidation and reorganization of the religious organization;
The order of disposal of the property left after payments with creditors in a case of liquidation of the religious organization;
The order of introducing changes and amendments to the charter;
Other information concerning the peculiarities of activity of the given religious organization.

Article 21. Refusal in the State Registration of the Religious Organization.

The state registration of the religious organization can be refused on the following bases:

The created religious organization does not correspond with the requirements contained in article 13 of the present Law;
The charter and other submitted documents do not correspond to the requirements of the legislation of the Republic of Belarus or the information contained in them is invalid;

On the results of conducting of the state religious expertise that is carried out in cases established by the present law;
The order of creation of the religious organization, established by the present law is broken.

The notification on the refusal in the state registration of the religious organization is direct to applicants in writing with the indication of the bases of refusal. Refusal and also evasion of registering body from the state registration of the religious organization can be appealed against in court, in the order established by the legislation of the Republic of Belarus.

Article 22. State Religious Expertise.

The state religious expertise is appointed by the republican body of state management on affairs of religions in the cases established by the present Law at creation, and also at carrying out realization of the activity of religious organizations.

The order of appointing and conducting of the state religious expertise is determined by the republican body of state management on affairs of religions.

Article 23. The Liquidation of the Religious Organization.

The religious organization can be liquidated:

Under the decision of its founders or the body authorized by the charter of the religious organization;

Under the decision of court in the cases:

Repeated infringement of the present law, other legislation of the Republic of Belarus or carrying out by the religious organization of the activity contradicting to its charter during a year;

Realization of propaganda of war or extremist activities;

Realization of the activity connected to infringement of rights, freedom and legitimate interests of citizens, and also interfering execution by citizens of their state, public, family duties or harming their health and morals;

In other cases stipulated by legal acts.

The body which has executed the registration of the religious organization, and also other bodies (officials) in accordance with the legislative acts has the right to address in court with the application for liquidation of the religious organization.

Affairs about liquidation of the religious communities registered by regional, Minsk city executive committees are considered by appropriate regional, Minsk city courts, and about liquidation of the religious organizations registered by republican state body on affairs of religions, - the Supreme Court of the Republic of Belarus, if otherwise provided by the legislative acts.

Chapter 3. The Rights and Conditions of the Activity of Religious Organisations

Article 24. Legal Basis of the Activity of Religious Organizations.

The religious organizations in their activity should be guided by their charters and are obliged to observe requirements of the Constitution of the Republic of Belarus, Present law and other acts of the legislation of the Republic of Belarus.

Article 25. Divine Services, Religious Practices, Rituals and Ceremonies.

Divine services, religious practices, rituals and ceremonies can freely be carried out in the cult buildings, constructions and in territories concerning to them, in other places given to the religious organizations for these purposes, in places of pilgrimage, on cemeteries and in crematoriums.

Religious practices, rituals and ceremonies if necessary can be carried out at the place of residence of the citizens at their instance on condition of observance of rules of a hostel and a social order if they have not mass regular character.

Religious practices, rituals and ceremonies in the organizations of public health services, places of imprisonment pending trial and serving of punishment can be carried out at the request of citizens taking place in them in the premises specially selected with administration for these purposes. The persons who are taking place in these establishments, can have, receive, get and use the religious literature and subjects of cult if it does not harm their health does not derogate from of the right and legitimate interests of other persons.

The order of departure of divine services, religious practices, rituals and ceremonies by military men is established by the legislation on military service.

Divine services, religious practices and ceremonies, and also other mass actions, having the overall objective satisfaction of religious needs, in specially not assigned for these purposes places open-air and in premises can be carried out only after acceptance of the appropriate decision by the head of local executive and administrative body or its assistant in the order established by the legislation of the Republic of Belarus.

Article 26. Religious Literature and Goods of Religious Destination.

The religious organizations have the right to make, get, to export from the Republic of Belarus, to import into the Republic of Belarus the religious literature, others printed, audio and video materials, and also other subjects of religious purpose in the order established by the legislation of the Republic of Belarus.

To import into Republic the religious literature, others printed, audio and video materials the religious organizations can only after realization of the state religious examination.

At distribution of the religious literature, other printed, audio and video materials religious expertise can be carried out under the decision of republican body of state management on affairs of religions.

At receipt of the religious literature to the library funds realization of the state religious examination is obligatory.

The commercial organizations on publishing of the religious literature and manufacture of subjects of cult purpose can be created only by the religious organizations.

The religious organizations at carrying out their activity are obliged to specify the full name and confessional belonging.

The literature, others printed, audio and video materials produced by the religious organizations should have marks with the indication of a full name of the religious organizations and their confessional belonging.

Distribution of the religious literature, audio, video and other materials of the religious contents can be carried out by the religious organizations in belonging to them on the property right or other lawful bases premises, and also in the places selected for these purposes with local executive and administrative bodies.

Article 27. Charitable and Information Activity of the Religious Organizations.

The religious organizations have the right to carry out charities in the order established by the legislation of the Republic of Belarus.

Religious associations according to the charters have the right to create mass media in the order and on the conditions established by the legislation of the Republic of Belarus.

Article 28. Religious Educational Establishments.

Religious associations have the right to create religious educational establishments for vocational training of clerics, theologians and the church personnel in accordance to their charters.

The citizens training in the supreme and average religious educational establishments enjoy rights and privileges established for the students of the state educational establishments.

Article 29. International Relations and Contacts.

The religious organizations have the right to establish and support the international connections and contacts including the contacts with a view of pilgrimage, participation in assemblies and other actions, for getting religious education and also to invite for these purposes foreign citizens and persons without citizenship.

Religious associations in the order established by the Council of Ministers of the Republic of Belarus have the right to invite foreign citizens and persons without citizenship for the purpose of carry out of religious activity in the appropriate religious associations.

The foreign citizen, the person without citizenship has the right to be engaged in religious activity in the Republic of Belarus during one year. This term can be prolonged or reduced according to the legislation of the Republic of Belarus if necessary.

Article 30. Ownership of Religious Organizations.

Religious organizations have the right to property acquired or created by them at the cost of their own means, donated by citizens, organizations or transferred by the state as well as acquired on other basis as provided by the Law.

Transfer to the property to the religious organizations for use in the religious purposes of cult buildings and constructions with the ground areas concerning to them and other property of the religious purpose which is taking place in the republican or municipal property is carried out according to the legislation of Republic.

The religious organizations have is mainly right on transfer them by the state cult buildings with adjoining territory, except for what are used as objects of culture and sports.

The property transmitted by religious associations to religious communities included in religious association, and also to monasteries and monastic communities, religious brotherhoods and sisterhoods, to religious missions, religious educational establishments is assigned by the religious organizations on the right of operative management.

The religious communities included in religious association, monasteries and monastic communities, religious brotherhoods and sisterhoods, religious missions, religious educational establishments can transfer cult building and other property for using to other religious organizations only with consent of controls of religious association in which submission they are.

In the order established by the legislation the state helps the religious organizations in restoration of cult buildings of other subjects representing historical cultural value.

The state can give the religious organizations tax and other privileges according to the legislation of the Republic of Belarus.

Article 31. Use of the Property Owned by Legal Entities and Individuals.

Religious organizations for their needs can use buildings and other property given them on contractual basis by the legal entities and individuals.

Disputes on the matters concerning the possession and use of the cult buildings and property shall be settled in legal form unless the otherwise provided by the legislation of the Republic of Belarus.

Article 32. Enterprise Activity of the Religious Organizations.

The religious organizations are noncommercial organizations. They have the right to realize enterprise activity only for those purposes for which they are created and also appropriate to these purposes.

Article 33. Disposal of the Property of Liquidated Religious Organizations.

After the liquidation of religious organizations the property given them in use by the legal persons and individuals shall be returned to the former owners.

In the case of liquidation of the religious organizations the property owned by them shall be disposed of in accordance to their charters and the legislation of the Republic of Belarus.

The property of cult purpose owned by the religious organizations is not subject to the creditor's claims.

The list of kinds of property on which the collecting under claims of creditors cannot be inverted, affirms by the Council of Ministers of the Republic of Belarus.

Chapter 4.Regulations of Labour Relations and Relations Connected with Them in Religious Organizations.**Article 34. Regulations of Labour Relations in Religious Organizations.**

The labour relations in religious organizations are regulated by the legislation on labour of the Republic of Belarus.

Working conditions, forms, system and the sizes of its payment are established on the basis of the collective agreement, the agreement and the labour contract according to the legislation of the Republic of Belarus.

Article 35. Social Security and Social Insurance of Citizens Employed in Religious Organizations.

Citizens employed in religious organizations including priests are subject to social security and social insurance in accordance to the legislation of the Republic of Belarus.

The religious organizations make deductions in the appropriate funds in the order and the sizes established by the legislation of the Republic of Belarus.

Chapter 5. Control over the Observance of the Legislation on Freedom of Conscience, Creed and Religious Organizations.

Article 36. Control Over Execution of the Legislation of Republic on the Freedom of Conscience, Religion and the Religious Organizations Of the Republic of Belarus.

The control over execution of the legislation of the Republic of Belarus about the freedom of conscience, creed and the religious organizations in the appropriate territories is realized by local Councils of deputies, executive and administrative bodies.

Oblasts, Minsk city executive committees create their divisions on affairs of the religions, subordinated to them and to the republican state body on affairs of religions.

Article 37. The Notice Warning.

In case of the violence by the religious organization of the legislation of the Republic of Belarus or realization of the activity contradicting to the charter of the religious organization, registering body bears the prevention which goes to three-day term to managing body of the religious organization.

If the infringements indicated in the first part of the present article within six months were not eliminated or took place repeatedly within one year, registering body has the right to appeal to court with the application for liquidation of the religious organization. The registering body has the right to make the decision on abeyance of the activity of religious organization before adjudication.

Article 38. Consequences of the Abeyance of the Activity of Religious Organizations.

In case of abeyance of the activity the religious organization has no right to realize religious, enterprise and other activity, to represent itself as the founder of mass media and other legal persons, to transfer from the current bank account money resources to any persons, except for cases of making payments to the budget, the state inappropriate funds and other obligatory payments, calculations on earlier made civil and labour contracts, compensation of the harm caused by actions of the religious organization.

In case of acceptance by the court the decision on refusal in liquidation of the religious organization the religious organization renews the activity suspended according to the present law, from the moment of the introduction into validity of the decision of court.

Article 39. Responsibility for Violation of the Legislation of the Republic of Belarus On the Freedom of Conscience, Creed and Religious Organizations.

Infringement of the legislation of the Republic of Belarus about freedom of conscience, religion and the religious organizations is shown in particular in:

Creation and activity of the religious organizations, their bodies and the representatives, directed to carry out propaganda of war or extremist activities or connected with infringement of rights and freedom of citizens, and also interfering execution by citizens of their state, public, family duties or injuring to their health and morals;

Creation of the religious organizations in the state bodies and establishments, military units, and also in educational establishments;

Involving of minors to religious organizations, training of minors contrary to their will and without the consent of their parents or persons backup them;

Defilement of subjects esteemed in religion, cult constructions, places of pilgrimage and burial places;

Infringement of secret of a confession, -

Entail the responsibility established by the law.

Officials and the citizens guilty of infringement of the legislation of the Republic of Belarus about a freedom of conscience, religion and the religious organizations, accounted in the order established by the legislative acts of the Republic of Belarus.

Article 40. International Treaties.

If the international treaty concluded by the Republic of Belarus establishes other rules than which contained in the present law, rules of the international treaty shall be.

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